SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.			1. REQUISITION NUMBER HT02420012495586	PAGE 1 OF 28
2. CONTRACT NUMBER	3. AWARD/EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER HT940627QE006	6. SOLICITATION ISSUE DATE
7. FOR SOLICITATION INFORMATION CALL:	a. NAME Kimberly Bunn		b. TELEPHONE NUMBER (no collect calls) 7579535740	8. OFFER DUE DATE/ LOCAL TIME 24 Nov 2026 09:00 AM

9. ISSUED BY CODE: HT9406

DEFENSE HEALTH AGENCY
HCD SOUTHEAST, 808 SCHREIDER STREET
FREDERICK, MD 21702
UNITED STATES
Kimberly Bunn, Email: kimberly.p.bunn.civ@health.mil Telephone: 7579535740
Melissa Peregrino-White, Email: melissa.peregrino-white.civ@health.mil Telephone: 7579534038

10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☒ SET ASIDE: 100 % FOR:

- ☒ SMALL BUSINESS
- ☐ WOMEN-OWNED SMALL BUSINESS (WOSB)
- ☐ HUBZONE SMALL BUSINESS
- ☐ ECONOMICALLY DISADVANTAGED WOMEN-OWNED SMALL BUSINESS (EDWOSB)
- ☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS (SDVOSB)
- ☐ 8(A)

NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): 238210

SIZE STANDARD: USD 19,000,000.00

11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☒ SEE SCHEDULE	12. DISCOUNT TERMS	☐ 13a.THIS CONTRACT IS A RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM-DPAS (15 CFR 700)	13b. RATING 14. METHOD OF SOLICITATION ☒ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☐ REQUEST FOR PROPOSAL (RFP)

15. DELIVER TO CODE: HT0242

NAV MED CNT PORTSMOUTH VA - MM
ATTN SUPPLY OFFICER BLDG 250, 54 LEWIS MINOR STREET
PORTSMOUTH, VA 23708-2297
UNITED STATES

16. ADMINISTERED BY CODE:

17a. CONTRACTOR/ OFFERER CODE: FACILITY CODE:

TELEPHONE NUMBER

18a. PAYMENT WILL BE MADE BY CODE:

☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER

18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM

19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	See Schedule (Use Reverse and/or Attach Additional Sheets as Necessary)				

25. ACCOUNTING AND APPROPRIATION DATA
See Section G - Contract Administration Data

26. TOTAL AWARD AMOUNT (For Government Use Only)

☒ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☒ ARE ☐ ARE NOT ATTACHED

☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED

☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN ___ COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED

☐ 29. AWARD OF CONTRACT: REFERENCE ___ OFFER DATED ___. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS: See Schedule

30a. SIGNATURE OF OFFEROR/CONTRACTOR		31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)	
30b. NAME AND TITLE OF SIGNER (Type or print)	30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER (Type or print)	31c. DATE SIGNED

Created On:
10 Nov 2026, 10:15 AM Eastern Standard Time

Solicitation/Contract Form

ELECTRICAL WIRING INSTALL

ELECTRICAL WIRING INSTALL
Product Service Code: J059

Supplies or Services & Prices or Costs

Additional Information/Notes

Item	Supplies / Services	Quantity	Unit	Unit Price	Amount
0001	Product Service Description: Electrical Wiring Installation Pricing Arrangement: Firm Fixed Price	1	Job		

Description/Specifications/Statement of Work

Department of Defense
Defense Health Agency
Performance Work Statement

Dedicated Emergency Electrical Branch Circuits Installation (Panel EL9 to Rooms 9.2-122 & 9.2-129) for MagVenture TMS Equipment Installation / DMH

Naval Medical Center Portsmouth (NMCP)

1.0 GENERAL INFORMATION

1.1 This is a non-personal services contract to provide electrical infrastructure installation, conduit routing above drop ceilings under hospital air quality controls, emergency panelboard circuit breaker integration, and receptacle terminations to support newly acquired Government clinical equipment.

1.1.1 Description of services/introduction: The contractor shall provide all personnel, equipment, supplies, facilities, transportation, tools, materials, supervision, and other items and non-personal services necessary to perform install dedicated emergency backup branch circuits from emergency panel EL9 to Rooms 9.2-122 and 9.2-129 located in the Mental Health Department (9th Floor Psychiatric Wing) at Naval Medical Center Portsmouth (NMCP). The project includes above-ceiling conduit pathways, dedicated branch circuit conductors, single receptacles, and panelboard breakers as defined in this Performance Work Statement (PWS).

1.1.2 Background:
The Defense Health Agency has procured a MagVenture Transcranial Magnetic Stimulation (TMS) Therapy System under separate contract HT940626PE079 (Requisition Number: HT02420012413628) from MagVenture, Inc. The acquired clinical system includes:
MagPro R30 Magnetic Stimulator (Item 9016E0721)
Isolation Transformer MagPro X/R System (Item 9016D0031)
Coil Cooler for Cool Coils (Item 9016B0151)
Motorized Procedure Chair with neckrest and cloth cover (Item 9016B0081)
Head Stabilizer System (Vac-lock Pillow and Evacuation Pump) (Item 9016B0253)
Flow Arm, XH Trolley, Cool-B65 Coils, and associated accessories
While Contract HT940626PE079 includes on-site uncrating, physical assembly, vendor installation, and clinical user training, it explicitly excludes facility electrical modifications, pathway construction, and branch circuit installation from the facility emergency distribution system. In the absence of this requirement, the newly acquired TMS therapy system cannot be connected to the facility emergency backup system or placed into clinical operation. This PWS establishes the requirements for a licensed electrical contractor to install dedicated 120V emergency backup circuits from Panel EL9 to the destination clinical treatment rooms.

1.1.3 Scope:
The contractor shall provide complete electrical installation services to establish two (2) dedicated, code-compliant emergency backup branch circuits from facility distribution panel EL9 to Room 9.2-122 and Room 9.2-129 (Mental Health / 9th Floor Psychiatric Wing). Services include:
Performing on-site pre-installation site surveys and pathway verification.
Supplying and installing 300+ linear feet of 3/4" Electrical Metallic Tubing (EMT) conduit and associated hardware above the drop ceiling grid while strictly adhering to hospital air quality protocols (limiting ceiling tile removal to no more than two [2] tiles simultaneously per work area).
Supplying and pulling dedicated copper conductors (#10 THHN Black, #12 THHN Black, and #12 THHN Green insulated ground) from Panel EL9 to destination rooms.

Supplying and installing two (2) 20-amp, 1-pole bolt-on circuit breakers in existing Emergency Panelboard EL9.

Supplying, roughing-in, and terminating two (2) 20A, 125V, 3-wire single receptacles (NEMA 5-20R) with matching single-gang faceplates (one [1] dedicated receptacle per room in Room 9.2-122 and Room 9.2-129) positioned to interface with the MagVenture Isolation Transformer and system trolley.
Implementing healthcare Infection Control Risk Assessment (ICRA) Type-A (Low Risk) procedures throughout all above-ceiling and room work.
Conducting circuit continuity, voltage validation, ground verification, and panel schedule directory updates.

1.1.4 Period of Performance (PoP): 1 DEC 2026-31 DEC 2026

1.2 Administrative specifications

1.2.1 Place of performance: The work shall be performed at:
Facility / MTF: Naval Medical Center Portsmouth (NMCP)

Address: 620 John Paul Jones Circle, Portsmouth, VA 23708-2297
Specific Clinical Wing / Floor: Mental Health Department, 9th Floor Psychiatric Wing
Specific Locations: Panel EL9 electrical closet, interstitial/above-ceiling pathways, and Rooms 9.2-122 and 9.2-129.

1.2.2 Recognized Federal holidays:
The contractor is not required to perform services on Federal holidays.
New Year's Day Labor Day
Martin Luther King Jr.'s Birthday Columbus Day
President's Day Veteran's Day
Memorial Day Thanksgiving Day
Juneteenth Day Christmas Day
Independence Day

1.2.3 Hours of operation: The contractor is responsible for conducting business Monday thru Sunday, preferably during downtimes in the wards and clinics, except Federal holidays or when the Government facility is closed due to local or national emergencies, administrative closings, or similar Government directed facility closings. The contractor must at all times maintain an adequate workforce for the uninterrupted performance of all tasks defined within this PWS when the Government facility is not closed for the above reasons.

Scheduled Panel Tie-Ins / Outages: Any electrical panel tie-in or utility interruption associated with Emergency Panel EL9 that impacts active hospital operations must be scheduled a minimum of ten (10) business days in advance and coordinated through the COR and NMCP Facilities Management Department (FMD).

Behavioral Health / Psychiatric Wing Sensitivities: Work in the 9th Floor Psychiatric Wing requires heightened security and tool inventory controls. Contractor personnel shall maintain strict tool accountability (e.g., tethered or locked tool containers) and coordinate all room access directly with nursing staff, Mental Health Department points of contact, and the COR.

1.2.4 Emergency Services:. (If applicable) On occasion, services may be required to support an activation or exercise of contingency plans outside the normal duty hours. (Keep in mind that if the contract does not have a CLIN for payment of emergency services, then 1.2.4 must be deleted.)
(Not Applicable - No emergency CLIN is established for this requirement).

1.3 Contractor Identification
1.3.1 Contractor personnel performing services in a contractor capacity in a Government facility are required to possess and wear an identification badge that displays his or her name and the name of their company. Ensure all those with whom the person interacts in any face-to-face dealings while supporting the Government understand that the person is contractor support personnel.

2.0 SPECIFIC TASKS

(This section is the heart of the PWS. All of the services to be performed under the contract should be described in sufficient detail here. This includes all general performance tasks required by the Government.)

The contractor shall execute all electrical services described below in compliance with the National Electrical Code (NFPA 70), Standard for Electrical Safety in the Workplace (NFPA 70E), Healthcare Facilities Code (NFPA 99), OSHA 29 CFR 1910 Subpart S, OSHA 29 CFR 1910.147 (Lockout/Tagout), and Unified Facilities Criteria (UFC 3-520-01).

2.1 Task 1: Site Survey, Material Verification, and Inter-Contractor Coordination

2.1.1 Pre-Installation Pathway & Panel Survey: Within five (5) business days following contract award, the contractor shall verify the physical pathway above the acoustical drop ceiling from Panel EL9 to Rooms 9.2-122 and 9.2-129 on the 9th Floor Psychiatric Wing. The contractor shall confirm available breaker spaces in Panel EL9 and coordinate the exact drop locations in each room with the COR and Mental Health POC.

2.1.2 Material Verification: The contractor shall supply the specific materials listed in Section 2.3.1 (Contractor Furnished Materials) and submit product cut-sheets for all proposed circuit breakers, conduit/raceways, copper conductors, junction boxes, and receptacles to the COR for technical verification prior to installation.

2.1.3 Inter-Contractor Equipment Alignment: The contractor shall coordinate the physical mounting height, wall orientation, and interface requirements for the single receptacles in Rooms 9.2-122 and 9.2-129 to match the power input requirements of the MagVenture TMS Therapy System's Isolation Transformer (Item 9016D0031) and Coil Cooler (Item 9016B0151) as procured under Contract HT940626PE079.

2.2 Task 2: Above-Ceiling Conduit and Pathway Installation (Air Quality Controlled)
The contractor shall furnish and install all raceways, conduit fittings, and mechanical supports required to route the emergency circuits from Panel EL9 to the destination rooms.

2.2.1 Conduit Routing, Sizing & Support Hardware: The contractor shall furnish and install 300+ linear feet of 3/4" Electrical Metallic Tubing (EMT) above the drop ceiling grid. All conduits shall be assembled using 3/4" stainless steel setscrew/compression connectors and 3/4" stainless steel couplings. Raceways shall be secured and supported using:
3/4" steel 1-hole straps.
1/2" or 3/4" snap-close conduit clips with 1/4-20 threaded holes.
1/2" or 3/4" conduit and box supports with 9/32" mounting holes.
1/4" threaded rod (plated) and 1/4-20 plated steel hex nuts.
Hammer-on flange clips to 1/4" flange with 1/4" threaded rod hangers.
Fasteners including #10 x 1" pan-head self-tapping screws and #8 x 1/2" wafer head self-tapping stud screws (12-gauge).
Conduit shall be supported directly from the building structure and shall NOT rest on or be attached to suspended ceiling grid wires, HVAC ductwork, or medical piping.

2.2.2 Drop Ceiling Air Quality Protocol (Strict Requirement): In strict compliance with NMCP environmental safety and hospital air quality mandates, the contractor shall open no more than two (2) ceiling tiles simultaneously per work zone at any time during conduit installation and wire pulling. As work progresses along the pathway, previously opened ceiling tiles shall be completely re-seated before opening subsequent tiles.

2.2.3 Junction Boxes and Rough-In: The contractor shall install 4" x 1-1/2" square boxes with combination knockouts, 4" square single-gang plaster rings (5/8" rise) for receptacle locations, 4" square blank covers for pull/splice locations, and ground screws with insulated #12 leads for equipment grounding.

2.2.4 Wall Penetrations and Firestopping: Where conduit penetrates fire-rated smoke barriers or partition walls along the 9th floor run, the contractor shall properly seal all annular penetrations with UL-listed intumescent firestop sealant (ASTM E814 / UL 1479) to restore wall assemblies to their original fire rating.

2.3 Task 3: Dedicated Emergency Branch Circuits and Receptacle Terminations
The contractor shall furnish, pull, terminate, and protect two (2) dedicated emergency branch circuits from Panel EL9.

2.3.1 Contractor-Furnished Materials List

The contractor shall provide and install the following specific materials (or approved technical equivalents):
1. Raceway & Fittings:
o 3/4" Conduit - EMT (300+ linear feet)
o 3/4" Connectors SS STL - EMT
o 3/4" Couplings SS STL - EMT
o 3/4" 1-Hole Straps - EMT - Steel
o 1/2" or 3/4" Conduit Snap Close Clips w/ 1/4-20 Threaded Hole
o 1/2" or 3/4" Conduit + Box Supports w/ 9/32" Mounting Hole
2. Conductors & Wiring Supplies:
o #10 AWG THHN Copper Solid/Stranded Conductor - Black (for long-run voltage drop mitigation across the 300+ ft run)
o #12 AWG THHN Copper Conductor - Black (phase/ungrounded conductors)
o #12 AWG THHN Copper Conductor - Green (equipment grounding conductors)
o Wire Connectors - Red (UL-listed twist-on wire nuts)
o Ground Screws with Insulated #12 Lead
3. Boxes, Plaster Rings & Covers:
o 4" x 1-1/2" Square Boxes (Combination Knockouts)
o 4" Square Single-Gang Plaster Rings (5/8" rise)
o 4" Square Blank Covers
4. Hanging, Support & Fastening Hardware:
o 1/4" Threaded Rod - Plated
o 1/4-20 Hex Nuts - Plated Steel
o #10 x 1" Pan-Head Self-Tapping Screws
o #8 x 1/2" Wafer Head Self-Tapping Stud Screws - 12G
o Hammer-On Clips to 1/4" Flange w/ 1/4" Threaded Rod Hangers
5. Overcurrent Protection & Devices:
o (2) 20A, 1-Pole Bolt-On Circuit Breakers (compatible with Panel EL9)

o (2) 20A, 125V, 3-Wire Single Receptacles - Brown (Straight Blade, NEMA 5-20R)
o (2) 1-Gang Single Receptacle Plates - Plastic Ivory

2.3.2 Panel EL9 Breaker Installation: The contractor shall install the two (2) 20A 1-pole bolt-on breakers into active Panel EL9. The contractor shall update the panel directory card with typed entries indicating "Room 9.2-122 Dedicated TMS Receptacle" and "Room 9.2-129 Dedicated TMS Receptacle."

2.3.3. Branch Circuit Wiring: The contractor shall pull dedicated branch circuits using #10 and #12 THHN conductors and #12 green ground wire. Each circuit shall maintain an individual neutral and ground. Shared neutrals are strictly prohibited.

2.3.4 Receptacle Installation: The contractor shall rough-in and terminate one (1) 20A 125V 3-wire single receptacle (NEMA 5-20R) with an ivory single-gang faceplate in Room 9.2-122 and one (1) in Room 9.2-129. Receptacles shall be permanently labeled with the source panel and circuit number (e.g., "EL9-[Ckt#]").

2.3.5 Drywall Restoration Exclusion: In accordance with the contractor's project scope, structural drywall patching and cosmetic painting are excluded from this electrical scope of work. Any drywall penetrations beyond standard electrical box cut-ins must be coordinated in advance with the COR and NMCP Facilities Management Department.

2.4 Task 4: Testing, Verification, and Cleanliness

2.4.1 Electrical Testing & Polarity Verification: Prior to final acceptance, the contractor shall test all conductors for circuit continuity, equipment ground integrity, line voltage under no-load, and correct hot/neutral/ground polarity at both single receptacles.

2.4.2 Housekeeping and Debris Control: Daily and upon completion of work in each room/corridor, the contractor shall clean up all wire clippings, metal shavings, packaging, and ceiling dust. Work areas shall be left in a clean state suitable for psychiatric wing clinical operations.

2.5 Task 5: Deliverables

The contractor shall provide the following closeout deliverables to the COR prior to final invoice approval:

2.5.1 Submittal Cut Sheets: Technical data sheets for breakers, conduit, wire, and receptacles delivered within five (5) business days of award.

2.5.2 Electrical Test Log: Written record showing voltage, polarity, and circuit continuity readings for both circuits.

2.5.3 As-Built Conduit Redlines: One (1) marked-up plan set reflecting the final routing of the 300+ feet of conduit from Panel EL9 to Rooms 9.2-122 and 9.2-129.

3.0 Qualifications/Considerations

3.1 Special Qualifications / Considerations

3.1.1 Electrician Licensing: All electrical rough-in, panel integration, and terminations shall be executed by or under the direct, continuous, on-site supervision of an active, licensed Journeyman or Master Electrician in good standing within the Commonwealth of Virginia.

3.1.2 Healthcare Infection Control Risk Assessment (ICRA) - Type-A Procedures: The contractor shall strictly adhere to NMCP ICRA Type-A (Low Risk) infection control procedures throughout the duration of performance:
o Conducting work by methods that minimize dust generation from construction activities.
o Ensuring ceiling tiles are inspected, handled carefully, and immediately replaced if damaged.
o Maintaining the strict rule of opening no more than two (2) ceiling tiles simultaneously per work area to prevent disturbance of ceiling air plenum spaces.
o Utilizing HEPA-filtered vacuum equipment for clean-up of any loose dust or debris generated during work.

3.1.3 Life Safety & Smoke Barrier Compliance: All penetrations through smoke or fire barrier walls along the 300+ foot run must be fire stopped with approved UL-listed assemblies prior to the conclusion of the work shift.

3.1.4 Lockout / Tagout (LOTO) Compliance: All work inside or adjacent to Emergency Panel EL9 shall strictly comply with OSHA 29 CFR 1910.147 and NFPA 70E. Panel connections shall be made in an electrically de-energized and locked-out state unless an energized electrical work permit is formally approved by NMCP Safety and the COR.

3.1.5 Psychiatric Wing Safety and Security Protocols: The contractor shall comply with all NMCP security protocols governing patient-care areas in the Psychiatric Wing, including ensuring tools, ladders, and loose materials are never left unattended.

WALK THROUGH

A one-time site-visit walk through of the spaces will be conducted on **Friday November 20th, 2026 @ 12:30 PM EST**

All interested vendors are required to be present and participate in the scheduled site visit. Vendors not attending this scheduled one-time group site visit may be considered ineligible for contract award.

Contractors interested in attending the site visit must notify the Contract Specialist, Kimberly Bunn via e-mail kimberly.p.bunn.civ@health.mil **no later than 10:00am (Eastern Time) on Monday, 16th 2026** of your company's intentions to participate in the site visit walk-through. Only contractors who have notified the Contract Specialist will be allowed to participate in the site visit. **Vendors' technical and pricing proposals are due by close of business on Tuesday, 24 June 2026.**

Department: Mental Health Department

Command: Naval Medical Center Portsmouth (NMCP)

NMCP Facilities Management Department (FMD)
Organization / Command: Naval Medical Center Portsmouth (NMCP)
Department: Facilities Management Department / BOMI
Address: 620 John Paul Jones Circle, Portsmouth, VA 23708

Requirements

FY27 One-Time Contract: Electrical Wiring Installation for TMS Equipment, in support of Mental Health
0001

Product Service Code: J065

Packaging and Marking

Inspection and Acceptance

Overall Contract Inspection/Acceptance Locations

0001	Acceptance Location Acceptance Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/inspection criteria. DoDAAC: HT0242 CountryCode: USA NAV MED CNT PORTSMOUTH VA - MM ATTN SUPPLY OFFICER BLDG 250, 54 LEWIS MINOR STREET PORTSMOUTH, VA 23708-2297 UNITED STATES

Deliveries or Performance

Line Item	Delivery Schedule	Quantity	Address and POC
0001	Delivery Schedule From date of lead time event to beginning of performance 1 Month Date of Award Period of Performance From 01 Dec 2026 To 31 Dec 2026	1 Job	Service Performance Site DoDAAC: HT0242 CountryCode: USA NAV MED CNT PORTSMOUTH VA - MM ATTN SUPPLY OFFICER BLDG 250, 54 LEWIS MINOR STREET PORTSMOUTH, VA 23708-2297 UNITED STATES

Contract Administration Data

VENDOR TO COMPLETE THE FOLLOWING:
COMPANY NAME: _____
CAGE: _____
UEI: _____

Vendor POC: _____
Phone: _____
Fax: _____
Vendor email: _____

Defense Health Agency Contracting Activity (DHACA)
POC:
Phone:
Email:

Product/Services for: Naval Medical Center Portsmouth VA
620 John Paul Jones Circle
Portsmouth VA 23708-2297
Department:
Phone:

Vendor to reference RFQ Number: **HT940627QE006** on all inquiries.

PAYMENT INFORMATION
Payment in Arrears (Check One): __**X**__Monthly ____Quarterly ____Semi-Annually ____Annually
*Please ensure that quoted price matches the choice above and is evenly divisible depending on the selection

PROMPT PAYMENT
For Prompt Payment Act Purposes, this contract is:
Subject to the 7-calender day constructive acceptance period.

DISCOUNTS
The vendor's initial response to this RFQ should reflect the Vendors' best price including all allowable discounts that are available to the Federal Government. Please identify all discounts that are being offered as part of the vendor's quote submission. The government does not intend to go out for a best and final offer.

EMAIL QUOTES/PROPOSALS TO: kimberly.p.bunn.civ@health.mil
DO NOT forward via U.S. Mail service. It is the Contractor's responsibility to confirm receipt of quote/proposal.

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018		

DFARS Clauses Incorporated by Full Text

252.232-7006 Wide Area WorkFlow Payment Instructions. (Jan 2023)

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at https://www.sam.gov; and

(2) Be registered to use WAWF at https://wawf.eb.mil/ following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at https://wawf.eb.mil/

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

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(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

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(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

Field Name in WAWF	*Data to be entered in WAWF*

Pay Official DoDAAC	____
Issue By DoDAAC	____
Admin DoDAAC	____
Inspect By DoDAAC	____
Ship To Code	____
Ship From Code	____
Mark For Code	____
Service Approver (DoDAAC)	____
Service Acceptor (DoDAAC)	____
Accept at Other DoDAAC	____
LPO DoDAAC	____
DCAA Auditor DoDAAC	____
Other DoDAAC(s)	____

*(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")*

*(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)*

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

____

(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Special Contract Requirements

BUSINESS ASSOCIATE AGREEMENT
Privacy, Access, Use, and Disclosure of Protected Health Information

1. Introduction. In accordance with 45 C.F.R. (S)(S) 164.502(e)(2) and 164.504(e), and DoDM 6025.18, "Implementation of the Health Insurance Portability and Accountability Act (HIPAA) Privacy Rule in DoD Health Care Programs," March 13, 2019, this document serves as a Business Associate Agreement (BAA) between the signatory Parties for purposes of the HIPAA and the "HITECH Act" amendments thereof, as implemented by the HIPAA Rules and DoD HIPAA issuances (both defined below). The Parties are (1) a DoD Military Health System (MHS) component command such as a Navy Medicine Medical Treatment Facility (MTF) (Naval Medical center or Naval hospital), or special mission command (research, public health, other), acting as a HIPAA covered entity, and (2) another Federal or Government organization, civilian academic institution, or other civilian entity, acting as a HIPAA Business Associate (BA). The HIPAA Rules require BAAs between covered entities and BAs. Implementing this BAA requirement, the applicable DoD HIPAA issuances (DoDM 6025.18) provides that requirements applicable to BAs must be incorporated (or incorporated by reference) into the contract or agreement between the Parties.

2. Definitions:

a. Terms. Except as provided otherwise in this BAA, the following terms used in this BAA shall have the same meaning as those terms in the DoD HIPAA Rules (DoDM6025.18-): Data aggregation, designated record set, disclosure, health care operations, individual, minimum necessary, notice of privacy practices, protected health information (PHI), required by law, secretary, security incident, subcontractor, unsecured PHI, and use.

b. Breach. means actual or possible loss of control, unauthorized disclosure of or unauthorized access to PHI or other Personally Identifiable Information (PII) (which may include, but is not limited to PHI), where persons other than authorized users gain access or potential access to such information for any purpose other than authorized purposes, where one or more individuals will be adversely affected. The foregoing definition is based on the definition of "Breach" in DoD Privacy Act issuances as defined herein.

c. BA. shall generally have the same meaning as the term "BA" in the DoD HIPAA issuances, and in reference to this BAA, shall mean the entity (another Government organization, civilian academic institution, or other civilian organization), entering into agreement with a Navy Medicine MTF or special mission command.

d. Agreement. means this BAA together with the documents or other arrangements under which the BA signatory performs services involving access to PHI on behalf of the MHS component signatory to this BAA.

e. Covered Entity. shall generally have the same meaning as the term "covered entity" in the DoD HIPAA issuances, and in reference to this BAA, shall mean a Navy Medicine MTF or special mission command under the Bureau of Medicine and Surgery.

f. DHA Privacy Office. means the Defense Health Agency (DHA) Privacy and Civil Liberties Office. The DHA Privacy Office Director is the HIPAA Privacy and Security Officer for DHA, including the National Capital Region Medical Directorate.

g. DoD HIPAA Issuances. means the DoD issuances implementing the HIPAA Rules in the DoD MHS. These issuances are DoDM 6025.18 Implementation of the HIPAA Privacy Rule in DoD Health Care Programs," March 13, 2019; DoD Instruction 6025.18, Privacy of Individually Identifiable Health Information in DoD Health Care Programs of December 2009, and DoD Instruction 8580.02, Security of Individually Identifiable Health Information in DoD Health Care Programs of August 2015.

h. DoD Privacy Act Issuances. means the DoD issuances implementing the Privacy Act, which are DoD Directive 5400.11, DoD Privacy Program of 29 October 2014, and DoD 5400.11-R, Department of Defense Privacy Program of 8 May 2007.

i. HIPAA Rules. means, collectively, the HIPAA privacy, security, breach and enforcement rules, issued by the United States (US) Department of Health and Human Services (HHS) and codified at 45 C.F.R. (S)(S) 160 and 164, Subpart E (Privacy), Subpart C (Security), Subpart D (Breach) and 45 C.F.R. (S) 160, Subparts C-D (Enforcement), as amended by the 2013 modifications to those Rules which implemented the "HITECH Act" provisions of Publication L. 111-5. See 78 Federal Regulation 5566-5702 of 25 January 2013 (with corrections at 78 Federal Regulation 32464 of 7 June 2013. Additional HIPAA rules regarding electronic transactions and code sets (45 C.F.R. (S) 162) are not addressed in this BAA and are not included in the term HIPAA Rules.

j. HHS Breach. means a breach that satisfies the HIPAA Breach Rule definition of "Breach" in 45 C.F.R. (S) 164.402.

k. Service-Level Privacy Office. means one or more offices within the military services (Army, Navy, or Air Force) with oversight authority over Privacy Act and HIPAA privacy compliance.

3. Obligations and Activities of BA:

a. The BA shall not access, use, or disclose PHI other than as permitted or required by this Agreement, the controlling Memorandum of Understanding (MOU) or training affiliation agreement, or as required by law.

b. The BA shall use appropriate safeguards and comply with the DoD HIPAA Rules with respect to electronic PHI to prevent use or disclosure of PHI other than as provided for by this Agreement, the controlling MOU, or law.

c. The BA shall report to the covered entity any Breach of which it becomes aware and shall proceed with breach response steps required by paragraph 7 (Breach Response) of this BAA. With respect to electronic PHI, the BA shall also respond to any security incident of which it becomes aware in accordance with any information assurance provisions of the Understanding. If at any point the BA becomes aware that a security incident involves a breach, the BA shall immediately initiate breach response as required by paragraph 7 (Breach Response) of this BAA.

d. In accordance with 45 C.F.R. (S)(S) 164.502(e)(1)(ii)) and 164.308(b)(2), respectively, as applicable, the BA shall ensure that any entities that create, receive, maintain, or transmit PHI on behalf of the BA agree to the same restrictions, conditions, and requirements that apply to the BA with respect to such PHI.

e. The BA shall make available PHI in a designated record set, to the covered entity or, as directed by the covered entity, to an Individual, as necessary to satisfy the covered entity obligations under 45 C.F.R. (S) 164.524.

f. The BA shall make any amendment(s) to PHI in a designated record set as directed or agreed to by the covered entity pursuant to 45 C.F.R. (S) 164.526, or take other measures as necessary to satisfy covered entity's obligations under 45 C.F.R. (S) 164.526.

g. The BA shall maintain and make available the information required to provide an accounting of disclosures to the covered entity or an individual as necessary to satisfy the covered entity's obligations under 45 C.F.R. (S) 164.528.

h. To the extent the BA is to carry out one or more of the covered entity's obligation(s) under the HIPAA privacy rule, the BA shall comply with the requirements of HIPAA privacy rule that apply to the covered entity in the performance of such obligation(s).

i. The BA shall make its internal practices, books, and records available to the Secretary and the covered entity for purposes of audit and in determining compliance with the HIPAA Rules.

4. Permitted Uses and Disclosures by BA:

a. The BA may only use or disclose PHI as necessary to perform the services set forth in the Understanding or as required by law. The BA is not permitted to de-identify PHI under DoD HIPAA issuances or the corresponding 45 C.F.R. (S) 164.514(a) through (c), nor is it permitted to use or disclose de-identified PHI except as provided by the Understanding or directed by the covered entity.

b. The BA agrees to use, disclose, and request PHI only in accordance with the HIPAA privacy rule "minimum necessary" standard and corresponding DHA policies and procedures as stated in the DoD HIPAA issuances.

c. The BA shall not use or disclose PHI in a manner that would violate the DoD HIPAA issuances or HIPAA privacy rules if done by the covered entity, except uses and disclosures for the BA's own management and administration and legal responsibilities or for data aggregation services as set forth in the following three paragraphs:

(1) Except as otherwise limited in the understanding, the BA may use PHI for the proper management and administration of the BA or to carry out the legal responsibilities of the BA. The foregoing authority to use PHI does not apply to disclosure of PHI, which is covered in the next paragraph.

(2) Except as otherwise limited in the Understanding, the BA may disclose PHI for the proper management and administration of the BA or to carry out the legal responsibilities of the BA, provided that disclosures are required by law, or the BA obtains reasonable assurances from the person to whom the PHI is disclosed that it will remain confidential and used or further disclosed only as required by law or for the purposes for which it was disclosed to the person, and the person notifies the BA of any instances of which it is aware in which the confidentiality of the information has been breached.

(3) Except as otherwise limited in the Understanding, the BA may use PHI to provide Data Aggregation services relating to the covered entity's health care operations.

5. Provisions for Covered Entity to Inform BA of Privacy Practices and Restrictions:

a. The covered entity shall provide the BA with the notice of privacy practices that the covered entity produces in accordance with 45 C.F.R.(S) 164.520 and the corresponding provision of the DoD HIPAA issuances (DoDM 6025.18).

b. The covered entity shall notify the BA of any changes in, or revocation of, the permission by an Individual to use or disclose his or her PHI, to the extent that such changes affect the BA's use or disclosure of PHI.

c. The covered entity shall notify the BA of any restriction on the use or disclosure of PHI that the covered entity has agreed to or is required to abide by under 45 C.F.R. (S) 164.522, to the extent that such changes may affect the BA's use or disclosure of PHI.

6. Permissible Requests by Covered Entity. The covered entity shall not request the BA to use or disclose PHI in any manner that would not be permissible under the

HIPAA privacy rule or any applicable Government regulations (including without limitation, DoD HIPAA issuances) if done by the covered entity, except for providing Data Aggregation services to the covered entity and for management and administrative activities of the BA as otherwise permitted by this BAA.

7. Breach Response:

a. General. Breach Response is designed to satisfy the DoD Privacy Act issuances and the HIPAA Breach Rule as implemented by the DoD HIPAA issuances. In general, the BA shall report the breach to the covered entity, assess the breach incident, notify affected individuals, and take mitigating actions, as applicable. Because DoD defines "Breach" to include possible (suspected) as well as actual (confirmed) breaches, the BA shall implement these breach response requirements immediately upon the BA's discovery of a possible breach. The following provisions set forth the BA's Privacy Act and HIPAA breach response requirements for all breaches, including but not limited to HHS breaches (defined below). In the event of a breach of PII or PHI held by the BA, the BA shall follow the breach response requirements set forth under paragraphs 7, 8, and 9 of this BAA, which are designed to satisfy both the Privacy Act and HIPAA, as applicable.

(1) If a breach involves PII without PHI, then the BA shall comply with DoD Privacy Act issuance breach response requirements only.

(2) If a breach involves PHI (a subset of PII), then the BA shall comply with both Privacy Act and HIPAA breach response requirements.

(3) If a breach involves PHI, it may or may not constitute an HHS Breach. If a breach is not an HHS Breach, then the BA has no HIPAA breach response obligations. In such cases, the BA must still comply with breach response requirements under the DoD Privacy Act issuances.

b. HHS Breach. If the DHA Privacy Office determines that a breach is an HHS Breach, then the BA shall comply with both the HIPAA Breach Rule and DoD Privacy Act issuances, as directed by the DHA Privacy Office, regardless of where the breach occurs.

c. Non-HHS Breach. If the DHA Privacy Office determines that the breach does not constitute an HHS Breach, then the BA shall comply with DoD Privacy Act issuances, as directed by the applicable Service-Level Privacy Office.

d. Service-Level Privacy Office Point of Contact (POC). Brian Martin, who may be reached at Comm: 904-542-3559, DSN: 312-942-3559, or via E-mail: brian.k.martin4.civ@mail.mil, or usn.ncr.bumedfchava.list.bumed-pii-rpt@mail.mil.

BRIAN K. MARTIN
CODE M31 PRIVACY OFFICE
BUMED DETACHMENT JACKSONVILLE
H2005 KNIGHT LANE
PO BOX 140
NAVAL AIR STATION JACKSONVILLE FL 32212

8. Breach Reporting Provisions:

a. The BA shall report the breach within 1 business day of discovery to the US Computer Emergency Readiness Team (US-CERT) and within 24 hours of discovery to the DHA Privacy Office and the other Parties set forth below. The BA is deemed to have discovered a breach as of the time a breach (suspected or confirmed) is known, or by exercising reasonable diligence would have been known, to any person (other than the person committing it) who is an employee, officer, or other agent of the BA.

b. The BA shall submit the US-CERT report using the online form at https://forms.us-cert.gov/report. Before submission to US-CERT, the BA shall save a copy of the on-line report. After submission, the BA shall record the US-CERT Reporting Number. Although only limited information about the breach may be available as of the 1 hour deadline for submission, the BA shall submit the US-CERT report by the deadline. The BA shall e-mail updated information as it is obtained, following the instructions at: http://www.us-cert.gov/pgp/email.html. The BA shall provide a copy of the initial or updated US-CERT report to the DHA Privacy Office and the applicable Service-Level Privacy Office, if requested by either.
BA questions about US-CERT reporting shall be directed to the DHA or Service-Level Privacy Office, not the US-CERT office.

c. The BA report due within 24 hours shall be submitted by completing the New Breach Reporting Form DD 2959 at the Breach Response page on the DHA Privacy Office web site and emailing that form to, as applicable, the DHA Privacy Office, the Service-Level Privacy Office, the Contracting Officer (CO) and Contracting Officer's Representative (COR) (if the Understanding is not a contract, delete these references to the CO and COR), and the BA's DoD POC unless the POC specifies another addressee for breach reporting. Encryption is not required, because Breach Report Forms should not contain PII or PHI. The email address for notices to the DHA Privacy Office is provided at the Privacy Office web site breach response page. If electronic mail is not available, telephone notification is also acceptable, but all notifications and reports delivered telephonically must be confirmed by email as soon as technically feasible.

d. If multiple beneficiaries are affected by a single event or related set of events, then a single reportable breach may be deemed to have occurred, depending on the circumstances. The BA shall inform the DHA Privacy Office as soon as possible if it believes that "single event" breach response is appropriate; the DHA Privacy Office will determine how the BA shall proceed and, if appropriate, consolidate separately reported breaches for purposes of BA report updates, beneficiary notification, and mitigation.

e. When a Breach Report Form initially submitted is incomplete or incorrect due to unavailable information, or when significant developments require an update, the BA shall submit a revised form or forms, stating the updated status and previous report date(s) and showing any revisions or additions in red text. Examples of updated information the BA shall report include, but are not limited to:

(1) Confirmation on the exact data elements involved.

(2) Root cause of the incident.

(3) Any mitigation actions to include, sanctions, training, incident containment, follow-up, etc. The BA shall submit these report updates promptly after the new information becomes available. Prompt reporting of updates is required to allow the DHA Privacy Office to make timely final determinations on any subsequent notifications or reports. The BA shall provide updates to the same Parties as required for the initial Breach Reporting Form. The BA is responsible for reporting all information needed by the DHA Privacy Office to make timely and accurate determinations on reports to HHS as required by the HHS Breach Rule and reports to the Defense Privacy and Civil Liberties Office as required by DoD Privacy Act issuances.

f. In the event the BA is uncertain on how to apply the above requirements, the BA shall consult with the DHA privacy office or service-level privacy office when determinations on applying the above requirements are needed.

9. Breach - Individual Notification Provisions:

a. Determine if Notification is Required. If the DHA Privacy Office determines that individual notification is required, the BA shall provide written notification to individuals affected by the breach as soon as possible, but no later than 60 working days after the breach is discovered and the identities of the individuals ascertained. The 60-day period begins when the BA is able to determine the identities (including addresses) of the individuals whose records were impacted.

b. Draft Proposed Notification. The BA's proposed notification to be issued to the affected individuals shall be submitted to the Parties to which reports are submitted under paragraph 7 (breach response) for their review and for approval by the DHA Privacy Office. Upon request, the BA shall provide the DHA Privacy Office with the final text of the notification letter sent to the affected individuals. If different groups of affected individuals receive different notification letters, then the BA shall provide the text of the letter for each group. PII shall not be included with the text of the letter(s) provided. Copies of further correspondence with affected individuals need not be provided unless requested by the Privacy Office. The BA's notification to the individuals, at a minimum, shall include the following:

(1) Identify PII Lost. The individual(s) must be advised of what specific data was involved. It is insufficient to simply state that PII has been lost. Where names, Social Security Numbers (SSNs) or truncated SSNs, and Dates of Birth are involved, it is critical to advise the individual that these data elements potentially have been breached.

(2) Inform. The affected individual(s) must be informed of the facts and circumstances surrounding the breach. The description should be sufficiently detailed so that the individual clearly understands how the breach occurred.

(3) Protective Actions. The affected individual(s) must be informed of what protective actions the BA is taking or the individual can take to mitigate against potential future harm. The notice must refer the individual to the current Federal Trade Commission (FTC) web site pages on identity theft and the FTC's Identity Theft Hotline: Toll Free: 1-877-ID-THEFT (438-4338), TTY: 1-866-653-4261.

(4) Credit Monitoring. The individual(s) must also be informed of any mitigating support services (e.g., 1 year of free credit monitoring, identification of fraud expense coverage for affected individuals, provision of credit freezes, etc.) that the BA may offer affected individuals, the process to follow to obtain those services, the period of time the services will be made available, and contact information (including a phone number, either direct or toll-free, e-mail address and postal address) for obtaining more information.

(5) Labeling. BAs shall ensure any envelope containing written notifications to affected individuals are clearly labeled to alert the recipient to the importance of its contents (e.g., "Data Breach Information Enclosed") and that the envelope is marked with the identity of the BA or subcontractor organization that suffered the breach. The letter must also include contact information for a designated POC to include, phone number, email address, and postal address.

c. Notification within 60 Days. If the BA determines that it cannot readily identify, or will be unable to reach, some affected individuals within the 60-day period after discovering the breach, the BA shall so indicate in the initial or updated Breach Report Form. Within the 10-day period, the BA shall provide the approved notification to those individuals who can be reached. Other individuals must be notified within 60 days after identities and addresses are ascertained. The BA shall consult with the DHA Privacy Office, which will determine which media notice is most likely to reach the population not otherwise identified or reached. The BA shall issue a generalized media notice(s) to that population in accordance with Privacy Office approval.

d. Costs. The BA shall, at no cost to the government, bear any costs associated with a breach of PII or PHI that the BA has caused or is otherwise responsible for addressing.

e. Security Incident versus Breach. Breaches are not to be confused with security incidents (often referred to as cyber security incidents when electronic information is involved), which may or may not involve a breach of PII or PHI. In the event of a security incident not involving a PII or PHI breach, the BA shall follow applicable DoD Information Assurance requirements under its Understanding. If at any point the BA finds that a cyber security incident involves a PII or PHI breach (suspected or confirmed), the BA shall immediately initiate the breach response procedures set forth herein. The BA shall also continue to follow any required cyber security incident

response procedures to the extent needed to address security issues, as determined by DoD/DHA.

10. Termination:

a. Termination. Noncompliance by the BA (or any of its staff, agents, or subcontractors) with any requirements in this BAA may subject the BA to termination under any applicable default or other termination provision of the Understanding.

b. Effect of Termination.

(1) If the Understanding has records management requirements, the BA shall handle such records in accordance with the records management requirements. If the Understanding does not have records management requirements, the records should be handled in accordance with subparagraphs (2) and (3) below. If the Understanding has provisions for transfer of records and PII or PHI to a successor BA or if DHA gives directions for such transfer, the BA shall handle such records and information in accordance with such Understanding provisions or DHA direction.

(2) If the Understanding does not have records management requirements, except as provided in the following paragraph (3), upon termination of the Understanding, for any reason, the BA shall return or destroy all PHI received from the covered entity, or created or received by the BA on behalf of the covered entity that the BA still maintains in any form. This provision shall apply to PHI that is in the possession of subcontractors or agents of the BA. The BA shall retain no copies of the PHI.

(3) If the Understanding does not have records management provisions and the BA determines that returning or destroying the PHI is infeasible, the BA shall provide to the covered entity notification of the conditions that make return or destruction infeasible. Upon mutual agreement of the covered entity and the BA that return or destruction of PHI is infeasible, the BA shall extend the protections of the Understanding to such PHI and limit further uses and disclosures of such PHI to those purposes that make the return or destruction infeasible, for so long as the BA maintains such PHI.

11. Miscellaneous:

a. Survival. The obligations of BA under the "Effect of Termination" provision of this BAA shall survive the termination of the Understanding.

b. Interpretation. Any ambiguity in the Understanding shall be resolved in favor of a meaning that permits the covered entity and the BA to comply with HIPAA and the DoD HIPAA Rules.

(End of Text)

BASE ACCESS (NMCP)

Commander, Navy Installations Command (CNIC), has established the Navy Commercial Access Control System (NCACS), a standardized process for granting unescorted access privileges to vendors, contractors, suppliers and service providers not otherwise entitled to the issuance of a Common Access Card (CAC) who seek access to and can provide justification to enter Navy installations and facilities. Vendors visiting Naval Medical Center Portsmouth (NMCP) may obtain daily passes directly from Naval Station Norfolk (NSN) Pass and ID office, located at NSN (Bldg CD-9), 9040 Hampton Blvd, Norfolk, Virginia, 23505, by submitting identification credentials for verification and undergoing a criminal screening/ background check. Alternatively, if the vendor so chooses, it may voluntarily elect to obtain long-term credentials through enrollment, registration, background vetting, screening, issuance of credentials, and electronic validation of credentials at its own cost through one of the designated independent contractor NCACS service providers. Credentials will be issued every five years and access privileges will be reviewed / renewed on an annual basis. The costs incurred to obtain Navy installation access of any kind are not reimbursable, and the price(s) paid for obtaining long-term NCACS credentials will not be approved as a direct cost of this contract. Further information regarding NCACS can be found at http://cnic.navy.mil/CNIC_HQ_Site/index.htm.

(End of Text)

CONTRACTOR UNCLASSIFIED ACCESS TO FEDERALLY CONTROLLED FACILITIES, SENSITIVE INFORMATION, INFORMATION TECHNOLOGY (IT) SYSTEMS OR PROTECTED HEALTH INFORMATION (JAN 2017)

Homeland Security Presidential Directive (HSPD)-12, requires government agencies to develop and implement Federal security standards for Federal employees and contractors. The Deputy Secretary of Defense Directive-Type Memorandum (DTM) 08-006 - "DoD Implementation of Homeland Security Presidential Directive - 12 (HSPD-12)" dated November 26, 2008 (or its subsequent DoD instruction) directs implementation of HSPD-12. This clause is in accordance with HSPD-12 and its implementing directives.

Applicability

This text applies to contractor employees requiring physical access to any area of a federally controlled base, facility or activity and/or requiring access to a DoN or DoD computer/network/system to perform certain unclassified sensitive duties. This clause also applies to contractor employees who access Privacy Act and Protected Health Information, provide support associated with fiduciary duties, or perform duties that have been identified as National Security Position, as advised by the command security manager. It is the responsibility of the responsible security officer of the command/facility where the work is performed to ensure compliance.

Each contractor employee providing services at a Navy Command under this contract is required to obtain a Department of Defense Common Access Card (DoD CAC). Additionally, depending on the level of computer/network access, the contract employee will require a successful investigation as detailed below.

Access To Federal Facilities

Per HSPD-12 and implementing guidance, all contractor employees working at a federally controlled base, facility or activity under this clause will require a DoD CAC. When access to a base, facility or activity is required contractor employees shall in-process with the Command's Security Manager upon arrival to the Command and shall out-process prior to their departure at the completion of the individual's performance under the contract.

Access To Dod It Systems

In accordance with SECNAV M-5510.30, contractor employees who require access to DoN or DoD networks are categorized as IT-I, IT-II, or IT-III. The IT-II level, defined in detail in SECNAV M-5510.30, includes positions which require access to information protected under the Privacy Act, to include Protected Health Information (PHI). All contractor employees under this contract who require access to Privacy Act protected information are therefore categorized no lower than IT-II. IT Levels are determined by the requiring activity's Command Information Assurance Manager.

Contractor employees requiring privileged or IT-I level access, (when specified by the terms of the contract) require a Single Scope Background Investigation (SSBI) or T5 or T5R equivalent investigation , which is a higher level investigation than the National Agency Check with Law and Credit (NACLC)/T3/T3R described below. Due to the privileged system access, an investigation suitable for High Risk national security positions is required. Individuals who have access to system control, monitoring, or administration functions (e.g. system administrator, database administrator) require training and certification to Information Assurance Technical Level 1, and must be trained and certified on the Operating System or Computing Environment they are required to maintain.

Access to sensitive IT systems is contingent upon a favorably adjudicated background investigation. When access to IT systems is required for performance of the contractor employee's duties, such employees shall in-process with the Navy Command's Security Manager and Information Assurance Manager upon arrival to the Navy command and shall out-process prior to their departure at the completion of the individual's performance under the contract. Completion and approval of a System Authorization Access Request Navy (SAAR-N) form is required for all individuals accessing Navy Information Technology resources. The decision to authorize access to a government IT system/network is inherently governmental. The contractor supervisor is not authorized to sign the SAAR-N; therefore, the government employee with knowledge of the system/network access required or the COR shall sign the SAAR-N as the "supervisor".

The SAAR-N shall be forwarded to the Command's Security Manager at least 30 days prior to the individual's start date. Failure to provide the required documentation at least 30 days prior to the individual's start date may result in delaying the individual's start date.

When required to maintain access to required IT systems or networks, the contractor shall ensure that all employees requiring access complete annual Information Assurance (IA) training, and maintain a current requisite background investigation. The Contractor's Security Representative shall contact the Command Security Manager for guidance when reinvestigations are required.

Interim Access

The Command's Security Manager may authorize issuance of a DoD CAC and interim access to a DoN or DoD unclassified computer/network upon a favorable review of the investigative questionnaire and advance favorable fingerprint results. When the results of the investigation are received and a favorable determination is not made, the contractor employee working on the contract under interim access will be denied access to the computer network and this denial will not relieve the contractor of his/her responsibility to perform.

Denial or Termination of Access

The potential consequences of any requirement under this clause including denial or termination of physical or system access in no way relieves the contractor from the requirement to execute performance under the contract within the timeframes specified in the contract. Contractors shall plan ahead in processing their employees and subcontractor employees. The contractor shall insert this clause in all subcontracts when the subcontractor is permitted to have unclassified access to a federally controlled facility, federally-controlled information system/network and/or to government information, meaning information not authorized for public release.

Contractor's Security Representative

The contractor shall designate an employee to serve as the Contractor's Security Representative. Within three work days after contract award, the contractor shall provide to the requiring activity's Security Manager and the Contracting Officer, in writing, the name, title, address and phone number for the Contractor's Security Representative. The Contractor's Security Representative shall be the primary point of contact on any security matter. The Contractor's Security Representative shall not be replaced or removed without prior notice to the Contracting Officer and Command Security Manager.

Background Investigation Requirements And Security Approval Process For Contractors Assigned To National Security Positions Or Performing Sensitive Duties

Navy security policy requires that all positions be given a sensitivity value based on level of risk factors to ensure appropriate protective measures are applied. Contractor

employees under this contract are recognized as Non-Critical Sensitive [ADP/IT-II] positions when the contract scope of work require physical access to a federally controlled base, facility or activity and/or requiring access to a DoD computer/network, to perform unclassified sensitive duties. This designation is also applied to contractor employees who access Privacy Act and Protected Health Information (PHI), provide support associated with fiduciary duties, or perform duties that have been identified as National Security Positions. At a minimum, each contractor employee must be a US citizen and have a favorably completed NACLC or T3 or T3R equivalent investigation to obtain a favorable determination for assignment to a non-critical sensitive or IT-II position. The investigation consists of a standard NAC and a FBI fingerprint check plus law enforcement checks and credit check. Each contractor employee filling a non-critical sensitive or IT-II position is required to complete:

SF-86 Questionnaire for National Security Positions (or equivalent OPM investigative product)
Two FD-258 Applicant Fingerprint Cards (or an electronic fingerprint submission)
Original Signed Release Statements

Failure to provide the required documentation at least 30 days prior to the individual's start date shall result in delaying the individual's start date. Background investigations shall be reinitiated as required to ensure investigations remain current (not older than 10 years) throughout the contract performance period. The Contractor's Security Representative shall contact the Command Security Manager for guidance when reinvestigations are required.

Regardless of their duties or IT access requirements ALL contractor employees shall in-process with the Command's Security Manager upon arrival to the command and shall out-process prior to their departure at the completion of the individual's performance under the contract. Employees requiring IT access shall also check-in and check-out with the Navy Command's Information Assurance Manager. Completion and approval of a System Authorization Access Request Navy (SAAR-N) form is required for all individuals accessing Navy Information Technology resources. The SAAR-N shall be forwarded to the Navy Command's Security Manager at least 30 days prior to the individual's start date. Failure to provide the required documentation at least 30 days prior to the individual's start date shall result in delaying the individual's start date.

The contractor shall ensure that each contract employee requiring access to IT systems or networks complete annual Information Assurance (IA) training, and maintain a current requisite background investigation. Contractor employees shall accurately complete the required investigative forms prior to submission to the Command Security Manager. The Command's Security Manager will review the submitted documentation for completeness prior to submitting it to the Office of Personnel Management (OPM); Potential suitability or security issues identified may render the contractor employee ineligible for the assignment. An unfavorable determination is final (subject to SF-86 appeal procedures) and such a determination does not relieve the contractor from meeting any contractual obligation under the contract. The Command's Security Manager will forward the required forms to OPM for processing. Once the investigation is complete, the results will be forwarded by OPM to the DoD Central Adjudication Facility (CAF) for a determination.

If the contractor employee already possesses a current favorably adjudicated investigation, the contractor shall submit a Visit Authorization Request (VAR) via the Joint Personnel Adjudication System (JPAS) or a hard copy VAR directly from the contractor's Security Representative. Although the contractor will take JPAS "Owning" role over the contractor employee, the Command will take JPAS "Servicing" role over the contractor employee during the hiring process and for the duration of assignment under that contract. The contractor shall include the IT Position Category per SECNAV M-5510.30 for each employee designated on a VAR. The VAR requires annual renewal for the duration of the employee's performance under the contract.

(End of Text)

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.202-1	Definitions.	Jun 2020		
52.203-3	Gratuities.	Apr 1984		
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	Jan 2017		
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards. (Deviation 2026-O0038)	Feb 2026		
52.204-13	System for Award Management-Maintenance. (Deviation 2026-O0038)	Feb 2026		
52.204-19	Incorporation by Reference of Representations and Certifications.	Dec 2014		
52.204-91	Contractor Identification. (Deviation 2026-O0038)	Feb 2026		
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (Deviation 2026-O0038)	Feb 2026		
52.212-4	Terms and Conditions-Commercial Products and Commercial Services. (Deviation 2026-O0038)	Feb 2026		
52.213-4	Terms and Conditions-Simplified Acquisitions (Noncommercial). (Deviation 2026-O0038)	Feb 2026		
52.219-6	Notice of Total Small Business Set-Aside. (Deviation 2026-O0038)	Feb 2026		
52.222-3	Convict Labor. (Deviation 2026-O0038)	Feb 2026		
52.222-36	Equal Opportunity for Workers with Disabilities. (Deviation 2026-O0038)	Feb 2026		
52.222-37	Employment Reports on Veterans. (Deviation 2026-O0038)	Feb 2026		
52.222-40	Notification of Employee Rights Under the National Labor Relations Act. (Deviation 2026-O0038)	Feb 2026		
52.222-50	Combating Trafficking in Persons. (Deviation 2026-O0038)	Feb 2026		
52.222-90	Addressing DEI Discrimination by Federal Contractors. (Deviation 2026-O0040, Revision 1)	Apr 2026		
52.223-23	Sustainable Products. (Deviation 2026-O0038)	Feb 2026		
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	May 2024		
52.229-12	Tax on Certain Foreign Procurements. (Deviation 2026-O0038)	Feb 2026		
52.232-1	Payments.	Apr 1984		
52.232-8	Discounts for Prompt Payment.	Feb 2002		
52.232-11	Extras.	Apr 1984		
52.232-25	Prompt Payment.	Jan 2017		
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	Oct 2018		
52.232-39	Unenforceability of Unauthorized Obligations.	Jun 2013		
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	Mar 2023		
52.233-1	Disputes. (Deviation 2026-O0038)	Feb 2026		
52.233-3	Protest after Award. (Deviation 2026-O0038)	Feb 2026		
52.233-4	Applicable Law for Breach of Contract Claim. (Deviation 2026-O0038)	Feb 2026		
52.240-91	Security Prohibitions and Exclusions. (Deviation 2026-O0038)	Feb 2026		
52.240-93	Basic Safeguarding of Covered Contractor Information Systems. (Deviation 2026-O0038)	Feb 2026		
52.243-1	Changes-Fixed-Price. (Deviation 2026-O0038)	Feb 2026		
52.244-6	Subcontracts for Commercial Products and Commercial Services. (Deviation 2026-O0038)	Apr 2026		
52.249-1	Termination for Convenience of the Government (Fixed-Price) (Short Form).	Apr 1984		
52.249-8	Default (Fixed-Price Supply and Service).	Apr 1984		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.204-7003	Control of Government Personnel Work Product.	Apr 1992		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting.	May 2024		
252.204-7015	Notice of Authorized Disclosure of Information for Litigation Support.	Jan 2023		
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	Jan 2023		
252.204-7020	NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.223-7006	Prohibition on Storage, Treatment, and Disposal of Toxic or Hazardous Materials.	Sep 2014		
252.225-7001	Buy American and Balance of Payments Program.	Feb 2024		
252.225-7048	Export-Controlled Items.	Jun 2013		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023		
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	Jun 2023		
252.232-7010	Levies on Contract Payments.	Dec 2006		
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	Jan 2023		
252.243-7001	Pricing of Contract Modifications.	Dec 1991		
252.244-7000	Subcontracts for Commercial Products or Commercial Services.	Nov 2023		
252.247-7023	Transportation of Supplies by Sea.	Oct 2024		

FAR Clauses Incorporated by Full Text

52.219-28 Postaward Small Business Program Rerepresentation. (Deviation 2026-O0038) (Feb 2026)

POSTAWARD SMALL BUSINESS PROGRAM REREPRESENTATION (FEB 2026) (DEVIATION 2026-O0038)

(a) *Definitions.* As used in this clause-

Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (c) of this clause.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was a small business concern, a small disadvantaged business concern, or a joint venture that was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (e) of this clause or, if applicable, paragraph (g) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts-

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at https://www.sba.gov/document/support--table-size-standards.

(d) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(e) Except as provided in paragraph (g) of this clause, the Contractor shall make the representation(s) required by paragraph (b) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, that the data have been validated or updated, and provide the date of the validation or update.

(f) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (e) or (g) of this clause.

(g) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it ☐ is, ☐ is not a small business concern under ____NAICS Code assigned to ____contract number.

(2) [*Complete only if the Contractor represented itself as a small business concern in paragraph (g)(1) of this clause*.] The Contractor represents that it ☐ is, ☐ is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) *Women-owned small business (WOSB) joint venture eligible under the WOSB Program*. The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____The Contractor shall enter the name and unique entity identifier of each party to the joint venture: __.]

(4) *Economically disadvantaged women-owned small business (EDWOSB) joint venture*. The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____The Contractor shall enter the name and unique entity identifier of each party to the joint venture: __ .]

(5) *Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program*. The Contractor represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [____The Contractor shall enter the name and unique entity identifier of each party to the joint venture: __.]

(6) *HUBZone joint venture eligible under the HUBZone Program*.[*Complete only if the offeror is a HUBZone small business concern.*] The offeror represents, as part of its offer, that It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [____The Contractor shall enter the name and unique entity identifier of each party to the joint venture: .] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern. [____Contractor to sign and date and insert authorized signer's name and title.]

(End of clause)

52.252-2 Clauses Incorporated by Reference. (Feb 1998)

CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

http://acquisition.gov/far/ ____ http://www.acq.osd.mil/dpap/dars/dfars/index.htm [Insert one or more Internet addresses]

(End of clause)

List of Attachments

Representations, Certification, & Other Statements

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation 2026-O0038)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Sep 2022		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	Oct 2016		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	May 2022		
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.	Jun 2023		

FAR Clauses Incorporated by Full Text

52.229-11 Tax on Certain Foreign Procurements-Notice and Representation. (Deviation 2026-O0038) (Feb 2026)

TAX ON CERTAIN FOREIGN PROCUREMENTS-NOTICE AND REPRESENTATION (FEB 2026) (DEVIATION 2026-O0038)

(a) *Definitions*. As used in this provision-

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area of the United States.

United States person as defined in 26 U.S.C. 7701(a)(30) means

(1) A citizen or resident of the United States;

(2) A domestic partnership;

(3) A domestic corporation;

(4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and

(5) Any trust if-

(i) A court within the United States is able to exercise primary supervision over the administration of the trust; and

(ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror may claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service (IRS) Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that

(1) It ☐ is ☐ is not a foreign person; and

(2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that-I am claiming on the IRS Form W-14 ☐ a full exemption, or ☐ partial or no exemption [*Offeror must select one*] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then-

(1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the IRS as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to https://www.irs.gov/help/tax-law-questions.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.204-7016 Covered Defense Telecommunications Equipment or Services-Representation. (Dec 2019)

COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (DEC 2019)

(a) *Definitions.* As used in this provision, "covered defense telecommunications equipment or services" has the meaning provided in the clause 252.204-7018, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.

(b) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (*https://www.sam.gov*) for entities excluded from receiving federal awards for "covered defense telecommunications equipment or services".

(c) *Representation.* The Offeror represents that it ☐ does, ☐ does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(End of provision)

252.204-7017 Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation. (May 2021)

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) *Definitions.* "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition.* Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at *https://www.sam.gov* for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Representation.* If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its

offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☑ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures*. If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

Instructions, Conditions, & Notices to Offerors or Quoters

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	Jan 2017		
52.204-7	System for Award Management-Registration. (Deviation 2026-O0038)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	Mar 2023		
252.215-7013	Supplies and Services Provided by Nontraditional Defense Contractors.	Jan 2023		

FAR Clauses Incorporated by Full Text

52.219-4 Notice of Price Evaluation Preference for HUBZone Small Business Concerns. (Deviation 2026-O0038) (Feb 2026)

NOTICE OF PRICE EVALUATION PREFERENCE FOR HUBZONE SMALL BUSINESS CONCERNS (FEB 2026) (DEVIATION 2026-O0038)

(a) Evaluation preference. (1) Offers will be evaluated by adding a factor of 10 percent to the price of all offers, except-

(i) Offers from HUBZone small business concerns that have not waived the evaluation preference; and

(ii) Otherwise successful offers from small business concerns.

(b) *Waiver of evaluation preference.* A HUBZone small business concern may choose to waive the evaluation preference. If the concern waives the preference, the factor will be added to its offer for evaluation purposes.

☐ Offeror chooses to waive the evaluation preference.

(c) *Joint venture.* A HUBZone joint venture agrees that, in the performance of the contract, at least 40 percent of the aggregate work performed by the joint venture shall be completed by the HUBZone small business parties to the joint venture. Work performed by the HUBZone small business parties to the joint venture must be more than administrative functions.

(End of provision)

52.252-1 Solicitation Provisions Incorporated by Reference. (Feb 1998)

SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

http://acquisition.gov/far/ ____http://www.acq.osd.mil/dpap/dars/dfars/index.htm [Insert one or more Internet addresses]

(End of provision)

Evaluation Factors for Award

EVALUATION FACTOR

This will be an "all or none" award, so vendors must provide a quote on all of the CLINs listed in Section B, Equipment Listing and adhere to the Performance Work Statement.

Quotes will be evaluated as follows for Best Value. Factors are listed in order of importance with technical being the most important factor. Past performance and price are equal in their importance, but less important than technical. Vendor must provide all of the requested documents below to be considered "responsive" to this solicitation.

Technical capabilities/technical approach

Vendor to provide technical capabilities statement/technical approach for completing the services per the Performance Work Statement
o Document is to be unpriced and separate from the remainder of the quote package
o List all pertinent information with regards to performing this service (examples are below).
Key personnel
Performance and delivery schedule

Past Performance

Vendor to provide a minimum of three (3) references for similar services provided during the past 24 months
o Customer POC (phone and email)
o Period of Performance
o Contract Number (if applicable)
o Dollar Value of contract

Price evaluation

Vendor to provide a published price list (not a GSA contract price list) or two invoices for the same or similar services or supplies
Vendor must breakdown all pricing elements as listed in Section B and the Equipment Listing.